

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
July 23, 2026
8:30 a.m./1:30 p.m.

1. OMAR ATEBAR V. MINA ATEBAR

PFL20140638

On November 19, 2025, Petitioner filed a Request for Order (RFO) seeking custody and visitation orders and child support. Ultimately, the parties agreed to set an evidentiary hearing which took place on May 5, 2026. At that time, the court found that there was not a preponderance of the evidence to establish abuse and the parties were awarded joint legal and joint physical custody of the minor. The parties were referred back to Child Custody Recommending Counseling (CCRC) and a review hearing was set for the present date.

Respondent filed a declaration on June 4, 2026. It was served on Petitioner however there is no Proof of Service for Minor's Counsel therefore the court cannot read or consider this document.

The parties attended Child Custody Recommending Counseling (CCRC) on June 12, 2026 and were able to reach some agreements. While the parties could not agree on all issues, the CCRC counselor was unable to give recommendations until the minor could be interviewed. A report with the agreements only was prepared on June 29, 2026. It was mailed to the parties on June 30th.

Respondent filed her Income and Expense Declaration on July 9th. Again, it was only served on Petitioner, not Minor's Counsel therefore the court cannot consider it.

Minor's Counsel filed Minor's Counsel Statement on July 15th. It was served on all parties on July 8th.

Petitioner has not filed a supplemental declaration. He filed an updated Income and Expense Declaration on July 20th however this document is late filed and there is no Proof of Service therefore the court cannot consider it.

This matter is being re-referred to CCRC with an appointment on Wednesday, September 30th at 1:00 PM. The parties are ordered to make the minor available to be interviewed by the CCRC counselor. A review hearing is set for Thursday, November 12th at 8:30 AM in Department 5. Any supplemental declarations are due no later than 10 days prior to the hearing date.

Pending the review hearing, all prior orders remain in full force and effect.

TENTATIVE RULING #1: THIS MATTER IS BEING RE-REFERRED TO CCRC WITH AN APPOINTMENT ON WEDNESDAY, SEPTEMBER 30TH AT 1:00 PM. THE PARTIES ARE ORDERED TO MAKE THE MINOR AVAILABLE TO BE INTERVIEWED BY THE CCRC

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COUNSELOR. A REVIEW HEARING IS SET FOR THURSDAY, NOVEMBER 12TH AT 8:30 AM IN DEPARTMENT 5. ANY SUPPLEMENTAL DECLARATIONS ARE DUE NO LATER THAN 10 DAYS PRIOR TO THE HEARING DATE. PENDING THE REVIEW HEARING, ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.